Banking for the Noesis group: Cuan's comments

One page, 12 November 2026. Private. For John's review before anything goes to Shane

What I did. I built Meridian's banking opinion into the contract and due diligence schedule as a new **section 7** (about four pages), with a document set (B1 to B16), twelve sequenced board resolutions (R1 to R12), minute-keeping rules, the legal frame, proposed roles and the questions to settle. The revised schedule is 13 printed pages in all. Sections 1 to 6 and 8 to 9 are Meridian's, with the order of work updated.

What I recommend is prepared, drafted, agreed and executed

1. **Order of steps.** Incorporate, file the beneficial ownership register (RBO), then apply. Bank of Ireland's own guidance asks that company details match the CRO and RBO first. Asterial goes first, with Noesis and Fabrica AI.
2. **Authority.** A board resolution plus the bank's mandate, company by company. Bank of Ireland's mandate stays in force until an amending, certified resolution reaches it, so the secretary's certification matters.
3. **Twelve resolutions per company, in order.** First the board rules (the filed Noesis constitution has no quorum, chair or board-rules clause), then accounts and signatories, signing matrix, treasury policy, payment controls, finance controller and audit and risk committee, intragroup agreements, related-party approvals, subscription and allotment, second bank, receipt of funds, and a standing monthly treasury item.
4. **The documents that carry most weight:** treasury policy, signing and delegation matrix, payment controls, intragroup agreements (money moves by subscription or documented services charge), related-party approval of Shane's IP consideration, and the investment receipt papers drafted by Asterial's own solicitors.
5. **Timing.** Draft everything before the term sheet, finalise at the term sheet, sign and test a small payment before completion.
6. **Foreign investment screening.** The regime has applied since 6 January 2025. On Shane's plan the first round is roughly 15 to 20% and the second about 25%, so the 25% line may be reached on the second round if the same investor holds both. Irish FDI counsel decides notifiability and timing, which can move completion.
7. **Minutes.** One template, one minute book per company (s.166), resolutions circulated with the papers, interests declared and minuted. Asterial needs its own secretary.
8. **Roles (proposed).** Pat prepares, Shane approves third-party payments, Tom holds the tokens, an independent director reviews. You certify and chair, and review the monthly report, rather than approve payments. Your decision.

Verified in search, secondary sources: Bank of Ireland's stated account requirements and mandate wording, s.166, ss.40, 41, 238, 239 and 242, RBO deadlines (five months for new companies, 14 days for changes), the Criminal Justice Act 2010 sections, Verification of Payee since 9 October 2025, FDI thresholds, EUR 100,000 deposit guarantee.

Not verified, marked UNVERIFIED in the document: the bank's internal routing and forms (its site could not be opened), s.161 written-resolution rule, s.231 and s.238 thresholds, group-company loans, whether FDI applies to Asterial, any high-risk-country listing, Global Markets terms. These go to the bank, Irish FDI counsel and Asterial's solicitor.

Next: your review, then your word on whether to send it to Shane. Nothing has been sent.